

Syllabus

The District has identified no federal statute in which a grace-period meaning has been ascribed to the word “tolled” or any word similarly rooted. And the one case in which this Court used tolling language to describe a grace period, see *Hardin v. Straub*, 490 U. S. 536, is a feather on the scale against the weight of decisions in which “tolling” a statute of limitations signals stopping the clock. Pp. 80–83.

(b) Considering first the ordinary meaning of the statutory language, § 1367(d) is phrased as a tolling provision. It suspends the statute of limitations both while the claim is pending in federal court and for 30 days postdismissal. Artis’ interpretation is a natural fit with this language. The District, in contrast, reads “tolled” to mean to remove, temporarily, the bar that would ordinarily accompany the expiration of the limitations period. But the District offers no reason to home in only on the word “tolled” itself and ignore information about the verb’s ordinary meaning gained from its grammatical object, “period of limitations.” That object sheds light on what it means to “be tolled.” The District’s reading also tenders a strained interpretation of the phrase “period of limitations”; makes the first portion of the tolling period, the duration of the claim’s pendency in federal court, superfluous; and could yield an absurdity, permitting a plaintiff to refile in state court even if the limitations period on her claim had expired before she filed in federal court. Pp. 83–85.

(c) The D. C. Court of Appeals erred in concluding that Congress adopted an American Law Institute (ALI) recommendation to allow refile in state court only for 30 days after a dismissal. The ALI provision, like § 1367(d), established a 30-day federal floor on the time allowed for refile, but it did not provide for tolling “while the [state] claim is pending” in federal court. Pp. 85–86.

(d) The 30-day provision casts no large shadow on Artis’ stop-the-clock interpretation. The provision accounts for cases in which a plaintiff commenced a federal action close to the expiration date of the relevant state statute of limitations, by giving such a plaintiff breathing space to refile in state court. Adding a brief span of days to the tolling period is not unusual in stop-the-clock statutes. See, e. g., 46 U. S. C. § 53911. Section 1367(d)’s proviso “unless State law provides for a longer tolling period” could similarly aid a plaintiff who filed in federal court just short of the expiration of the state limitations period. Pp. 87–88.

2. The stop-the-clock interpretation of § 1367(d) does not present a serious constitutional problem. In *Jinks v. Richland County*, 538 U. S. 456, the Court rejected an argument that § 1367(d) impermissibly exceeds Congress’ authority under the Necessary and Proper Clause. *Id.*, at 464–465. The District contends that a stop-the-clock prescription